

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1214

By: Jenkins

AS INTRODUCED

An Act relating to human trafficking; enacting the Justice for Noncitizen Minors and Human Trafficking Accountability Act of 2025; recognizing findings; directing the Human Trafficking Response Unit to submit report; providing information report shall contain; directing the Attorney General to establish standards; providing certain duties; directing the Unit to perform certain task; defining terms; amending Section 2, Chapter 296, O.S.L. 2022 (74 O.S. Supp. 2024, Section 18r), which relates to the Human Trafficking Response Unit; modifying responsibilities; providing for noncodification; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Justice for Noncitizen Minors and Human Trafficking Accountability Act of 2025".

SECTION 2. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

1 The Oklahoma Legislature recognizes and declares the following:

2 1. Grave injustices and irreparable harm are caused by human
3 trafficking, particularly to noncitizen minors, who are among the
4 most vulnerable and exploited individuals in society;

5 2. Reports have revealed that entities, including certain
6 nongovernmental organizations, have failed to exercise reasonable
7 due diligence in the placement of unaccompanied minors, resulting in
8 their exposure to trafficking, forced labor, and other forms of
9 abuse;

10 3. The safety and welfare of minor children, regardless of
11 citizenship status, is a moral imperative and every effort must be
12 made to ensure their protection and opportunity to thrive;

13 4. It is the duty of the Legislature to provide victims of
14 human trafficking with a pathway to seek justice, including the
15 tools and evidentiary standards necessary to hold traffickers and
16 complicit organizations accountable in a court of law;

17 5. The Legislature will demonstrate leadership and courage in
18 the fight against human trafficking and set a standard for the
19 nation in defending the rights of minors who have suffered
20 unimaginable wrongs; and

21 6. The Legislature commits to protect the lives and dignity of
22 noncitizen minors, ensure justice for victims of human trafficking,
23 and provide the framework through which they may seek redress and
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1 accountability, thereby affirming Oklahoma's role as a defender of
2 human rights and a beacon of justice.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 18r-1 of Title 74, unless there
5 is created a duplication in numbering, reads as follows:

6 A. Not later than December 31, 2026, the Human Trafficking
7 Response Unit shall submit a comprehensive report to the Governor,
8 the President Pro Tempore of the Oklahoma State Senate, the Speaker
9 of the Oklahoma House of Representatives, the Oklahoma Department of
10 Libraries, and the transparency portal established pursuant to
11 Section 34.11.3 of Title 62 of the Oklahoma Statutes. This report
12 shall:

13 1. Document, to the fullest extent possible, the number of
14 minor persons trafficked by organizations that meet the definition
15 of "minor child trafficking organizations", defined pursuant to
16 subsection D of this section, or transported through the state by
17 such organizations, during the period beginning January 20, 2021,
18 and ending January 20, 2025;

19 2. Identify and record relevant data on trafficking patterns,
20 suspected organizations, individual perpetrators, and victims
21 trafficked within, into, or through the state, ensuring compliance
22 with privacy protections and de-identification standards; and

23 3. Provide findings in a manner consistent with evidentiary
24 standards suitable for future civil legal actions by victims,

1 ensuring the admissibility of such data in judicial proceedings
2 under applicable rules of evidence.

3 B. The Office of the Attorney General shall establish standards
4 and methodologies for the collection, validation, and preservation
5 of data for the report required pursuant to subsection A of this
6 section, including:

7 1. Coordinating with state and federal law enforcement
8 agencies, victim advocacy groups, and other relevant stakeholders to
9 gather reliable data;

10 2. Ensuring data is maintained in formats compliant with
11 evidentiary rules pursuant to the Oklahoma Evidence Code in Title 12
12 of the Oklahoma Statutes and federal standards for civil litigation;
13 and

14 3. Providing guidance and training to agency personnel on
15 maintaining chain-of-custody procedures for data collection to
16 preserve its integrity for use in future legal proceedings.

17 C. To support the preparation of the report described in
18 subsection A of this section, the Human Trafficking Response Unit
19 shall seek voluntary cooperation from nongovernmental organizations
20 and private entities. Such cooperation shall include sharing de-
21 identified data or other nonconfidential information that may aid in
22 identifying trends or perpetrators of the trafficking of noncitizen,
23 minor children.

24 D. For purposes of this section:

1 1. "Minor child trafficking organizations" means any entity,
2 whether formal or informal, that:

3 a. engaged in the transport of unaccompanied minors who,
4 at the time of transport, were not citizens of the
5 United States of America,

6 b. facilitated or arranged the placement of such minors
7 into the custody of individuals or entities without
8 first performing reasonable due diligence to verify a
9 prior custodial relationship existed between the minor
10 and the receiving individual or entity and failed to
11 ensure the placement complies with applicable state
12 and federal laws concerning the welfare of minors, and

13 c. either have a physical nexus in Oklahoma or have
14 transported the minor into or through the state during
15 the period described in subsection A of this section;

16 2. "Minor child" or "minor" means any individual who was not a
17 citizen of the United States of America and was under the age of
18 sixteen (16) at the time of the trafficking or placement described
19 in subsection A of this section;

20 3. "Reasonable due diligence" means the performance of a
21 thorough and documented investigation to verify the safety and
22 suitability of placing a minor with a sponsor, which shall include,
23 but not be limited to:

24 a. identity verification, including:

- (1) conducting comprehensive background checks on all prospective sponsors, including searches for criminal records, gang affiliations, and other indications of potential harm to the child, and
 - (2) requiring official documentation to confirm the identity of the sponsor,
- b. custodial relationship verification, including:
- (1) confirming the existence of a prior custodial or familial relationship between the sponsor and the minor child, supported by credible evidence such as birth certificates, legal guardianship documents, or other verifiable records, and
 - (2) investigating discrepancies or lack of documentation through interviews, home visits, or third-party verification,
- c. home and environmental safety assessment, including:
- (1) conducting on-site home studies to ensure the placement location is suitable and free from conditions that may endanger the minor's welfare, such as abandoned properties, uninhabitable structures, or fields with no physical address, and
 - (2) ensuring that the sponsor is capable of providing adequate care and supervision for the minor,

- d. capacity assessment, including ensuring that the sponsor has not previously taken custody of an unreasonable number of minors in a manner indicative of trafficking or exploitation,
- e. follow-up procedures, including:
 - (1) establishing a process for post-placement monitoring, including mandatory check-ins with minors and sponsors at regular intervals to verify the child's safety and well being, and
 - (2) requiring sponsors to report changes in living arrangements or custody status within a designated time frame, and
- f. transparency and accountability, including:
 - (1) documenting all steps taken in the vetting process, maintaining records in compliance with state and federal evidence standards to support potential civil or criminal actions, and
 - (2) providing clear findings to relevant oversight authorities when sponsors fail to meet minimum standards of care.

SECTION 4. AMENDATORY Section 2, Chapter 296, O.S.L. 2022 (74 O.S. Supp. 2024, Section 18r), is amended to read as follows:

1 Section 18r. There is hereby created within the Office of the
2 Attorney General the Human Trafficking Response Unit, which shall:

3 1. Maintain data in a central location on human trafficking
4 that shall be shared with law enforcement, criminal justice
5 entities, social service agencies, and victim services programs and
6 document information including, but not limited to, offenders,
7 locations, victims, types of trafficking, and trafficking
8 techniques. Provided, however, that any personal identifying
9 information shall be de-identified using tokens or a similar method
10 prior to the sharing of data in order to protect individuals'
11 privacy rights;

12 2. Develop training programs that address prevention efforts
13 and best practices on identifying and assisting victims of human
14 trafficking and support agencies in identifying at-risk environments
15 for human trafficking;

16 3. Review current state agency policies to ensure they include
17 best practices to identify human trafficking victims and encourage
18 reporting;

19 4. Create an incentive program to encourage state agencies to
20 have personnel attend training programs and review policies;

21 5. Appropriate targeted funding for victim services programs;
22 and
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1 6. Publish public service announcements on various media
2 platforms to educate the public about the dangers of human
3 trafficking; and

4 7. Carry out the reporting requirements pursuant to Section 3
5 of this act.

6 SECTION 5. This act shall become effective November 1, 2025.

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